an outrageous violation of the laws of England and yet the fullest expression of what the Founders called the "Laws of Nature," among which was the right to defy the powers of the day and rebel on point of principle, according to the dictates of one's conscience. The first Americans to exercise this right, the first "whistleblowers" in American history, appeared one year later—in 1777.

These men, like so many of the men in my family, were sailors, officers of the Continental Navy who, in defense of their new land, had taken to the sea. During the Revolution, they served on the USS *Warren,* a thirty-two-gun frigate under the command of Commodore Esek Hopkins, the commander in chief of the Continental Navy. Hopkins was a lazy and intractable leader who refused to bring his vessel into combat. His officers also claimed to have witnessed him beating and starving British prisoners of war. Ten of the *Warren*'s officers—after consulting their consciences, and with barely a thought for their careers—reported all of this up the chain of command, writing to the Marine Committee:

> Much Respected Gentlemen,
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> We who present this petition are engaged on board the ship Warren with an earnest desire and fixed expectation of doing our country some service. We are still anxious for the Weal of America & wish nothing more earnestly than to see her in peace & prosperity. We are ready to hazard every thing that is dear & if necessary sacrifice our lives for the welfare of our country. We are desirous of being active in the defence of our constitutional liberties and privileges against the unjust cruel claims of tyranny & oppression; but as things are now circumstanced on board this frigate, there seems to be no prospect of our being serviceable in our present station. We have been in this situation for a considerable space of time. We are personally well acquainted with the real character & conduct of our commander, Commodore Hopkins, & we take this method not having a more convenient opportunity of sincerely & humbly petitioning the honorable Marine Committee that they would inquire into his character & conduct, for we suppose that his character is such & that he has been guilty of such crimes as render him quite unfit for the public department he now occupies, which crimes, we the subscribers can sufficiently attest.

After receiving this letter, the Marine Committee investigated Commodore Hopkins. He reacted by dismissing his officers and crew, and in a fit of rage filed a criminal libel suit against Midshipman Samuel Shaw and Third Lieutenant Richard Marven, the two officers who admitted to having authored the petition. The suit was filed in the courts of Rhode Island, whose last colonial governor had been Stephen Hopkins, a signatory to the Declaration of Independence and the commodore's brother.

The case was assigned to a judge appointed by Governor Hopkins, but before the trial commenced Shaw and Marven were saved by a fellow naval officer, John Grannis, who broke ranks and presented their case directly to the